



POLICE DEPARTMENT

July 16, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301074 (Incident Date: January 25, 2023) regarding Police Officer Juan Rivera, Tax No. 961172 (DADS No. 2024-30685) and Police Officer Justin Rivera, Tax No. 958010 (DADS No. 2024-30686)

Dear Mr. Darche:

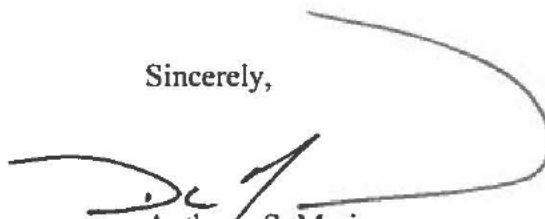
The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301074, pertaining to Police Officers Juan Rivera and Justin Rivera. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process.

After analyzing the facts and circumstances of the alleged misconduct against both officers, the Police Commissioner agrees with CCRB's substantiation of the allegations. However, given both officers lack of prior formal disciplinary history, lack of prior substantiated CCRB complaints, exceptional yearly evaluations, and in the interest of progressive discipline, the allegations against both officers would be best addressed with the imposition of command disciplines.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline against Police Officer Juan Rivera with the forfeiture of ten (10) vacation days for the substantiated misconduct. The Police Commissioner also intends to direct the issuance of a Schedule

"B" Command Discipline against Police Officer Justin Rivera with the forfeiture of five (5) vacation days for the substantiated misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 18, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301074 (Incident Date: January 25, 2023) regarding Police Officer Juan Rivera, Tax No. 961172 (DADS No. 2024-30685) and Police Officer Justin Rivera, Tax No. 958010 (DADS No. 2024-30686)

Commissioner Caban:

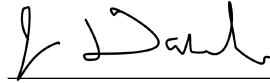
I am writing in response to the letter from Deputy Chief Anthony S. Marino, July 16, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Juan Rivera and PO Justin Rivera would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded that, while agreeing with the CCRB’s determination, you would instead direct the issuance of the following: a Schedule “B” Command Discipline with the forfeiture of ten (10) vacation days for PO Juan Rivera’s substantiated conduct, and a Schedule “B” Command Discipline with the forfeiture of five (5) vacation days for PO Justin Rivera’s substantiated conduct, citing both officers’ lack of prior NYPD or CCRB disciplinary history.

In this case, the Respondents are charged with numerous allegations directed towards two civilians who had gone to the 52nd Precinct stationhouse to inquire about a relative who had been arrested. These allegations include discourtesy, the wrongful use of force and the wrongful threat of arrest, allegations that were all caught on camera.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, it is respectfully requested that you permit the CCRB to continue the disciplinary process against PO Justin Rivera and PO Juan Rivera.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Jonathan Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

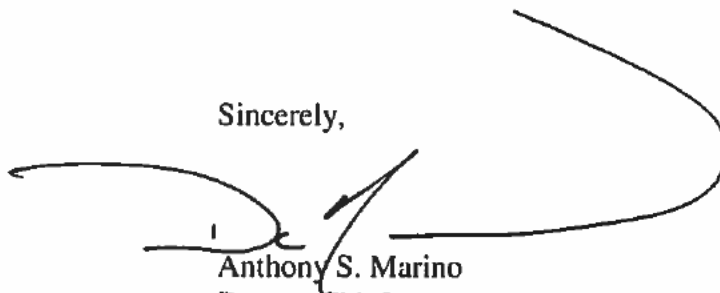
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 18, 2024, regarding the CCRB case involving Police Officers Juan Rivera and Justin Rivera and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said officers, for the reasons expressed in my July 16, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline against Police Officer Juan Rivera with the forfeiture of ten (10) vacation days for the substantiated misconduct. The Police Commissioner also directs the issuance of a Schedule "B" Command Discipline against Police Officer Justin Rivera with the forfeiture of five (5) vacation days for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office